

ASSEMBLY, No. 5036

STATE OF NEW JERSEY

220th LEGISLATURE

INTRODUCED JANUARY 10, 2023

Sponsored by:

Assemblyman P. CHRISTOPHER TULLY

District 38 (Bergen and Passaic)

Assemblywoman LISA SWAIN

District 38 (Bergen and Passaic)

Assemblyman ROBERT J. KARABINCHAK

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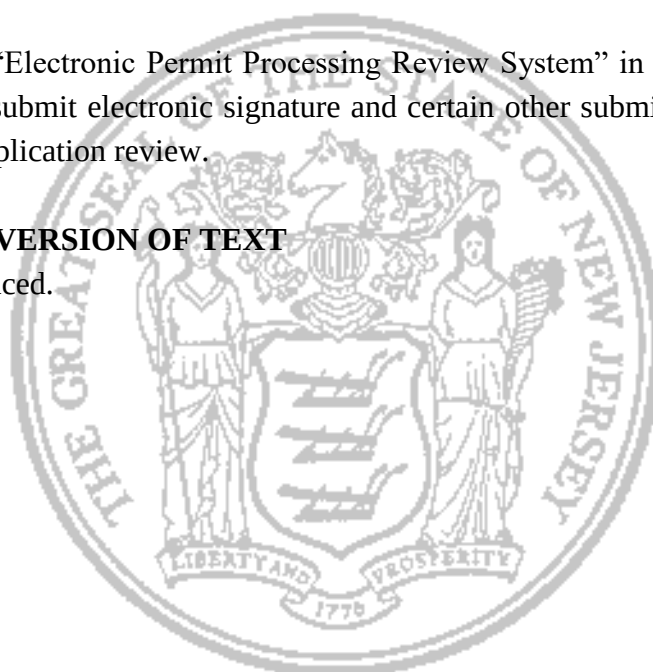
**Assemblywoman McKnight, Assemblymen Space, Wirths, Senators
Singleton and Pou**

SYNOPSIS

Requires “Electronic Permit Processing Review System” in DCA to enable applicant to submit electronic signature and certain other submission materials for permit application review.

CURRENT VERSION OF TEXT

As introduced.



(Sponsorship Updated As Of: 12/11/2023)

1 AN ACT concerning electronic signatures on construction permits
2 and other submissions and amending P.L.2021, c.70.

3
4 **BE IT ENACTED** by the Senate and General Assembly of the State
5 of New Jersey:

6
7 1. Section 1 of P.L.2021, c.70 (C.52:27D-124.4) is amended to
8 read as follows:

9 1. a. The Commissioner of Community Affairs shall establish,
10 develop, implement, and administer the "Electronic Permit
11 Processing Review System." This electronic system shall be an
12 Internet-based system allowing for the electronic submission of
13 applications for construction permits, plans, and specifications
14 pursuant to the "State Uniform Construction Code Act," P.L.1975,
15 c.217 (C.52:27D-119 et seq.), for the electronic review and
16 approval of applications, plans, and specifications, for the
17 scheduling of inspections, and for the exchange of information
18 between the applicant, the applicant's professionals, and the
19 department or enforcing agency during the review process. The
20 electronic system shall offer a permit applicant:

21 (1) the ability to submit the materials necessary for application
22 review;

23 (2) the ability to submit requests for on-site inspection of a
24 project; **[and]**

25 (3) continuous, 24-hour accessibility for the submission of both
26 scheduling requests**[,]** and the materials necessary for the permit
27 application review; and

28 (4) the ability to submit electronic signatures for all materials
29 necessary for the permit application review, including all
30 construction permits, plans and specifications, and for the
31 scheduling of inspections.

32 b. (1) Following the effective date of P.L.2021, c.70 (C.52:27D-
33 124.4 et al.), the commissioner may make the electronic system
34 accessible, and facilitate its use, through the acceptance of
35 application materials and scheduling submissions, by:

36 (a) the department, with regard to applications for which the
37 department approves plans and specifications pursuant to the "State
38 Uniform Construction Code Act";

39 (b) local enforcing agencies; and

40 (c) private agencies providing plan review and inspection
41 services.

42 (2) (a) Within one year following the effective date of P.L.2021,
43 c.70 (C.52:27D-124.4 et al.), the commissioner shall fully
44 implement the electronic system, and provide for its use, through
45 the acceptance of application materials and scheduling submissions,

EXPLANATION – Matter enclosed in bold-faced brackets **[thus] in the above bill is not enacted and is intended to be omitted in the law.**

Matter underlined thus is new matter.

1 by the department, with regard to applications for which the
2 department approves plans and specifications pursuant to the "State
3 Uniform Construction Code Act." **[.]**

4 (b) Local enforcing agencies may elect to utilize the electronic
5 system implemented by the department. In the alternative, a local
6 enforcing agency may utilize a different electronic system, which
7 system shall provide the same level of functionality as the system
8 implemented by the department as enumerated in subsection a. of
9 this section.

10 c. The commissioner shall provide training opportunities on the
11 use of the electronic system for employees of local enforcing
12 agencies and private agencies which provide plan review and
13 inspection services.

14 d. The commissioner shall, in accordance with the
15 "Administrative Procedure Act," P.L.1968, c.410 (C.52:14B-1 et
16 seq.), adopt rules and regulations to govern the form and format of
17 applications for construction permits, plans, and specifications and
18 other information exchanged through the electronic system.
19 Notwithstanding the requirement, pursuant to subsection b. of this
20 section, to accept electronically submitted materials within one year
21 following the effective date of P.L.2021, c.70 (C.52:27D-124.4 et
22 al.), the commissioner shall have the discretion to establish different
23 submission requirements, including non-electronic submissions as
24 necessary, for large, complicated, or otherwise unusual construction
25 projects, so long as the system is designed to accept approximately
26 80 percent of construction permit application submissions
27 electronically.

28 e. The department may waive a contrary form and format
29 requirement imposed by statute or ordinance or by the rules of
30 another department or agency for the submission of information in
31 physical form to the extent the waiver is necessary to facilitate the
32 submission of the information electronically. The department
33 **[may]** shall accept an electronic reproduction of a signature, stamp,
34 seal, certification, or notarization as the equivalent of the original or
35 **[may]** shall accept the substitution of identifying information for
36 the signature, stamp, seal, certification, or notarization. The
37 department shall not waive any other requirement.

38 f. The commissioner may adopt, amend, and repeal rules and
39 regulations providing for the charging of and setting the amount of
40 construction permit surcharge fees to be collected by an enforcing
41 agency or private agency. Fees shall be remitted to the department
42 to defray the cost of developing and administering the electronic
43 system by local enforcing agencies that have elected to utilize the
44 electronic system implemented by the department.

45 g. A person exchanging information through the electronic
46 system in a form and format acceptable to the department is not
47 subject to any licensing sanction, civil penalty, fine, permit
48 disapproval, or revocation or other sanction for failure to comply

with a form or format requirement imposed by statute, ordinance, or rule for submission of the information in physical form, including but not limited to any requirement that the information be in a particular form or of a particular size, be submitted with multiple copies, be physically attached to another document, be an original document or be signed, stamped, sealed, certified, or notarized.

h. As used in this section, "form and format" means the arrangement, organization, configuration, structure, or style of, or method of delivery for, providing required information or providing the substantive equivalent of required information. "Form and format" does not mean altering the substance of information or the addition or omission of information.

(cf: P.L.2021, c.70, s.1)

2. This act shall take effect immediately.

STATEMENT

Current law requires the Commissioner of Community Affairs to establish the "Electronic Permit Processing Review System," an Internet-based system allowing for the electronic submission of applications for construction permits, plans, and specifications pursuant to the "State Uniform Construction Code Act," N.J.S.A.52:27D-119 et seq., for the electronic review and approval of applications, plans, and specifications, for the scheduling of inspections, and for the exchange of information between the applicant, the applicant's professionals, and the Department of Community Affairs or enforcing agency during the review process. The electronic system offers a permit applicant:

- the ability to submit the materials necessary for application review;
- the ability to submit requests for on-site inspection of a project; and
- continuous, 24-hour accessibility for these submissions.

This bill amends current law to specify that the electronic permit system is also required to offer an applicant the ability to submit electronic signatures for all materials necessary for the permit application review, including all construction permits, plans and specifications, and for the scheduling of inspections. The bill also requires the department to accept an electronic reproduction of stamps, seals, certifications, and notarizations.